

Assessment of Expert Advisory Group key points and related Cabinet recommendations: Phase 3 RMA reforms

April 2025

Expert Advisory Group report key point	Cabinet position and recommendation	EDS/Forest and Bird position	EDS/Forest and Bird Comment
Develop new legislation in two separate Acts: i. A Planning Act focused on regulating the use, development and enjoyment of land. ii. A Natural Environment Act (NEA) focused on the use, protection and enhancement of the natural environment.	2 agree that the RMA will be replaced by two Acts that separate land-use planning and natural resource management – a Planning Act and a Natural Environment Act.	High concern	• Oppose splitting the RMA into two Acts. The natural environment (including land) is a single, interconnected whole and its management (purpose, process, institutional roles) needs to be integrated rather than siloed. • No compelling rationale for the spilt or evidence that it will result in improved economic or environmental outcomes. • Spilt as proposed does not align with international two-Act systems. Overseas, ‘planning’ legislation is also ‘environmental’ legislation (it is focused on the control of land for the protection of the natural environment) e.g., environmental impact assessments are triggered under planning legislation. • Splitting the RMA will create uncertainty and complexity and lead to increased appeals (where provided for) and judicial review.
	3 note that the significant debate over the meaning of the RMA’s ‘sustainable management’ purpose can be avoided in the new system by using descriptive purpose statements.	High concern	• A purely descriptive purpose statement does not ‘avoid’ this debate, it simply shifts it to wherever the normative core of the Act is located (e.g., in its ‘goals’, or in criteria guiding the development of policy or regulation). We agree with the EAG that a vague purpose statement should not do the heavy lifting (although case law on the meaning of sustainable management has by no means been ‘unproductive’). But the lifting must be done <i>somewhere</i>. • Primary legislation without clear substantive guidance will be reliant on discretion, and it will invite the kind of litigation reforms are intended to avoid. • If the relationship between competing goals under the NEA and Planning Act (or within each Act) is not clearly outlined, it will create uncertainty and undermine confidence in the legislation. • There has been significant nuance developed through case law on Part 2 of the RMA that should not be jettisoned.
	4 note that the Planning Act will focus on establishing a framework for planning and regulating the use, development and enjoyment of land.	High concern	• “Land-use planning and natural resource management” is not a meaningful distinction between the two Acts. The terms ‘land’ and ‘natural environment’ are not clearly defined in the EAG report. In places, ‘land’ is mentioned as being one element of the natural environment, while in others, it appears to be excluded. • The difficulties with a split are highlighted in the EAG’s table at page 18, where it is said that the rationale for a more ‘permissive’ system is that land use should be enabled (unless there are effects on neighbours), whereas ‘common pool’ resources have a less permissive approach. There is a considerable public interest in land, not just ‘unowned’ resources – and yet the NEA does not appear to have its protective goals apply to land. • It is unclear what RMA functions and powers would go in each new Act e.g., is the spilt based on different RMA Part 3 controls (land use/subdivision vs other controls)
	5 note that the Natural Environment Act will focus on establishing a framework for the use, protection and enhancement of the natural environment, subject to further advice on ensuring the NEA purpose recognises that protection and enhancement must be proportionate as the act is intended to be enabling.		

			or on different functions (different council responsibilities under sections 30 and 31 of the RMA)? In some places, the EAG report suggests that regional functions would not include land use jurisdiction, while in others it is suggested they would. In practice, regional councils currently have jurisdiction to impose land use controls under section 9 of the RMA to achieve their ‘environmental’ functions (e.g., freshwater quality). Conversely, district councils have jurisdiction over ‘environmental’ matters, not just land-use planning. • While true proportionality is not itself problematic, the implication that the Natural Environment Act would have a purpose that is ‘enabling’ is highly concerning given that it is envisaged to be the home for environmental limits.
The new Acts will have a smaller regulatory scope and not address matters adequately covered in other legislation. The effects regulated will be based on the economic concept of externalities. Matters such as financial effects and effects on trade competition will be excluded.	8 agree that the approach to effects management in the new system is based on the economic concept of externalities, meaning effects (relating to land use) borne solely by the party undertaking the activity would not be controlled.	High concern	• Adopting a strict economic concept of externalities would inappropriately narrow the system so that it could not manage important effects, borne by the landowner, but which have public impact (on current and future generations). For example: a) Contaminating land. b) Destroying elite soils. c) Clearing indigenous vegetation. d) Poor urban design. • There is an imperative to increase resilience to climate change. Focusing exclusively on externalities does not align with this outcome. • Cumulative effects are difficult to manage under a system based only on externalities. • Degraded environments need to be restored, requiring a mechanism going beyond just internalising effects (e.g., the United Kingdom’s net biodiversity gain mechanism). • Excluding ‘consideration of broader economic effects, such as whether a commercial development would be financially viable’, has risks if taken too far (eg viability of dispersed development). Ireland had considerable issues with market-led residential development after developers collapsed in the wake of the global financial crisis, leaving behind inefficient and incomplete developments. • There are some legitimate issues about system scope to fix up or clarify; in particular, where: a) Processes are being misused to stifle trade competition. b) Effects arise from people’s perception of the socio-economic characteristics of residents (e.g., social housing tenants). c) Effects are truly subjective or only affect the person creating them (but not where there are more nuanced public interest justifications behind them). d) Effects are only on councils’ balance sheets (with the important caveat that related issues about infrastructure funding and financing need to be addressed first). e) Issues are managed adequately under other legislation (with the caveat that many other statutes are not adequate without further reform). f) Consents impose requirements for positive effects entirely unrelated to adverse effects (with the caveat that under the RMA there often are links between these if one looks closely). • Responses to these issues should be targeted, rather than creating a fundamentally narrower definition of ‘effect’ or ‘environment’, or cutting down council functions in

			ss 30 and 31 of the RMA. Controls can be proportionate while not excluding certain effects from scope entirely. See our report on Scope of the System for further detail on EDS's position: https://eds.org.nz/resources/documents/reports/exploring-the-fundamental-questions-for-resource-management-law-reform-in-aotearoa-new-zealand-paper-2-the-scope-of-the-system/
	38 agree that the EAG's recommendations about overlaps between the RMA and other legislation will be staged to allow other legislation to be amended and avoid leaving gaps during the transitional period.	Dependent on detail	- There are serious questions as to whether certain matters are adequately addressed under other legislation (e.g., fisheries, biodiversity, heritage, climate change) to justify their removal from the scope of the new laws. A gap will exist if other frameworks are not <i>effective</i>. - Integrated management of related topics (e.g., land use and climate change) should be done through integrated legislation (where one decision-maker can consider all relevant aspects of a proposal at the same time). In other jurisdictions, there have been significant efforts to align various processes so this happens.
	38A agree that further work will be done prior to introduction on where heritage sits in the system, particularly in the context of regulatory takings, heritage management and listing of historic heritage between Minister Responsible for RMA Reform, Minister for Arts, Culture and Heritage and Under-secretary Court.	Dependent on detail	- The heritage management system is currently fragmented (listing is separate from regulatory controls). However, heritage controls are intimately associated with integrated management of land use in urban areas (e.g., where density is provided for). - We oppose removing heritage from the scope of a new system until (and unless) other heritage legislation is broadened to encompass regulatory control.
Both Acts will be based on the enjoyment of property rights and require justification reports if departing from approaches to regulation standardised at the national level. Compensation may happen for regulatory takings in some circumstances.	10 agree that the legislation will include protection against regulatory takings, with the details to be decided under delegation.	High concern	- We strongly oppose regulatory takings for three main reasons: - First, regulatory takings would disincentivise environmental regulation. - The EAG report recommended that regulatory controls more stringent than national standards would automatically trigger a takings claim. This would likely result in: - Councils not imposing more stringent controls (we question how this would work in a system that devolves some limit setting to the regional level). - Councils not adapting to local circumstances, even when the situation clearly necessitates it, such as the presence of an endangered species. - Degraded catchments not being improved over time, despite the Government's more general policy intent for such environmental improvement to occur. - Extensive litigation both for and against the taking. There would be arguments from those wanting more stringent controls (on the basis that the benefit of more stringent controls outweighs the costs of compensation) and on behalf of those receiving compensation (about quantum). - We are especially concerned that regulatory controls on freshwater takes or diffuse discharges could give rise to a claim for compensation (these could cause a significant impairment to the value of land), since expectations about water rights – a public resources – have in many cases already been factored into the price of farmland. - Secondly, frameworks for regulatory takings (compensating for controls on land use) are unusual internationally. New Zealand would be an outlier (even with

			respect to Ireland, which has constitutional protection for property and yet does not compensate for public interest controls). As in other countries, property rights in New Zealand are not absolute and have always yielded to genuine public interest concerns within the legitimate scope of resource management legislation. • Furthermore, the RMA already provides substantial protection for regulatory overreach, including section 32 reports, appeal rights, case law requirements for proportionality, and remedies (including the possibility of acquisition and compensation) where controls render land incapable of reasonable use. • Thirdly, there would be practical challenges. Setting a clear legal test for compensation (e.g., significant impairment to the value of land, as recommended by the EAG) would be immensely difficult and spur extensive litigation on a case by case basis (as in the USA). • At the planning stage, it may also be difficult to establish what compensation is even payable (ie what value is lost), since controls in a plan may simply require a consent to be obtained for certain activities (e.g., affecting an SNA or ONFL) rather than prohibiting uses of the land per se. • The approach allows Ministers to determine what is a taking and what is not, because claims could be opened up or shut down simply by amending national standards (since only rules that were more stringent would be compensable). That could see claims brought against councils for long-standing rules simply because central government shifted the goalposts by weakening national standards. • If the concern is council overreach, the better solution is better oversight of council decision-making and the use of complementary incentives (e.g., assistance for landowners) rather than the provision of a fixed compensation framework.
	15 agree that both Acts will require regulatory justification reports that outline the rationale for any regulatory plan rules that deviates from national standards.	Dependent on detail	• In principle, the idea of justifying regulation is sound. The RMA provides for this in section 32 reports, as well as in case law that already requires controls under the RMA to be proportionate to effects. • Whether regulatory justification reports are a positive step will depend on the framework (and purpose/principles) by which national standards are set, and how tailored to local contexts they are. For example, it would be a poor environmental outcome if councils like Gisborne had additional regulatory barriers put in place when attempting to exercise stringency for forestry controls.
Each Act will contain national goals setting out the main objectives of the regulatory framework that provide a basis for monitoring its implementation. The Planning Act will include goals for infrastructure provision and well-functioning urban and rural areas. The NEA will include goals for protecting important natural values.	6 agree in principle that each act will have a set of legislated goals and decision-making principles which will be streamlined to focus on the essential functions of land use planning and natural resource management, subject to further advice on the value provided by legislated goals and decision-making principles.	High concern	• This is a crucial element of the future system, since it seems to be where the normative engine room of legislation will lie (the equivalent of Part 2 of the RMA). • Much will depend on the nature of ‘further advice’ as to what are ‘essential’ functions and principles that will drive decisions under each Act. At present, these are vague. • We have significant concerns that the Planning Act’s goals will be stripped back to focus on development outcomes, which would be inappropriate unless there is a strong relationship with an NEA that <i>also</i> focuses on land use (it is unclear whether it will). Planning itself needs to pursue goals that are well beyond the internalisation of externalities. Internationally (e.g., in Australian states), best practice is for

			environmental protection and enhancement to be core to the principles of planning/land use legislation. • We fundamentally disagree with the EAG's statement that 'the central tenet of land-use law is the need to protect a person's use and enjoyment of their land' and 'prevent unreasonable incursions from the use of land by other landowners'. • We also disagree that essential functions are limited to 'managing risks from natural hazards and climate change, creating well-functioning urban and rural areas, enabling urban development capacity and infrastructure, separating incompatible land uses, providing public access, and recognising Māori cultural matters'. This is entirely silent as to the environmental aspects of land use. While it is positive that the EAG talks about achieving synergies, rather than just trade-offs, if environmental matters are not within the scope of the Act then these will not be synergies that are pursued.
	7 agree in principle that each act will have a set of decision-making and procedural principles to embed good planning practice and environmental management practice.	Dependent on detail	• In itself this is a sensible proposition, but its appropriateness will depend on what the principles are. • It is vital that principles include the precautionary principle (as recommended by the EAG for the NEA, but notably not for the Planning Act), the polluter-pays principle (supported by the EAG), and a principle of non-regression. Some expression of proportionality may be appropriate, depending on its wording. • We have concerns about a potential requirement in 'procedural' principles to 'act in an enabling manner' in both the Planning Act and Environment Act. This is a substantive direction and will not always align with the protective and enhancement purpose of the NEA. It introduces bias.
Each Act will require one mandatory national policy direction (NPD) that is succinct and resolves conflicts between environmental protection and development and, where that is not possible, provides direction on how conflicts can be reconciled through subsequent processes.	11 agree that the responsible Minister (to be decided under delegation) would be empowered to develop the following instruments: 11.1 a single mandatory National Policy Direction (NPD) under each Act.	Potentially beneficial	• A more integrated, coherent and clear set of national direction is needed, so the idea of single NPDs is positive. This should more effectively link national policies with national regulations/standards. • The relationship between NPD under the NEA and Planning Act will need to be made clear, to ensure effective implementation in regional spatial plans and regulatory plans (rather than articulating conflicting aspirations, which is a drawback of the current system). • NPD needs to be evidence based. This requires significant investment in environmental data. • NPD should be as succinct and plain language as possible, but this should not come at the expense of certainty or clarity of meaning. Reducing the size of national direction in the UK has had issues with making its direction vague and uncertain. • We are particularly concerned about the prospect of key policy statements for freshwater, coast and indigenous biodiversity being 'stripped back to their core policy elements', although it is not clear from the EAG report what this means. • It will be difficult to determine which national direction instruments go where, because of their interrelated and cross-cutting nature. This is another downside of splitting legislation.

	11.2 national standards under each act, including nationally standardised zones under the Planning Act.	Potentially beneficial	• There is merit in providing for greater standardisation of zones, as long as there is room for local variation to reflect different biophysical and community circumstances (especially when it comes to overlays). There should not be too much 'stickiness' in this process for communities to provide for local variation. • Beyond default rules for zones, there are significant risks in pursuing a 'one size fits all' approach to national standards, especially if those standards provide for permitted activities or only guard against the very worst outcomes. The environmental challenges facing different parts of the country are diverse, which means that the same rules could drive very different outcomes depending on where they are applied.
	11.3 environmental limits (under the NEA only).	Potentially beneficial	• It is vital that a new system provides for environmental limits. • Limits need to be set for 'domains'. • It is unclear how limits for ecosystems and indigenous biodiversity would be applied in the new system. • Some limits will need to be expressed spatially (e.g., SNAs), not just numerically (e.g., pollutant concentrations). • Limits need to be set according to clear legislative purpose/criteria, not left as a political exercise of discretion by Ministers or councils. The EAG has suggested a framing of 'life supporting capacity' but the meaning of this, and alternative framings (e.g., ecological integrity/health), requires unpicking. • There needs to be a strong accountability framework around limits, as there is (for the most part) in the EU.
	11.4 regulations under each Act, including but not limited to emergency or urgent response provisions, technical matters, matters requiring frequent updating and administrative matters.	Neutral	• The jurisdiction (and process) to develop such regulations needs to be carefully defined to ensure this is not a 'fast track' override for more substantive processes (e.g., environmental limits).
	12 agree that national standards will be for the purpose of implementing the NPD under each Act and providing a consistent approach to the regulation of activities.	Neutral	• We agree it is important that a clear link is made between policy in NPD and regulations in national standards. A failing of the RMA has been that NESs can be divorced from the broader policy drivers of NPSs.
Regional policy statements (RPSs) will be eliminated and partially replaced by spatial plans made under the Planning Act. Spatial plans include the coastal marine area (CMA) and will have weight in the regulatory planning process.	22 agree that spatial planning requirements sit under the Planning Act but are designed to help integrate decisions under the Planning Act and NEA at a strategic level, resolving conflicts where possible.	Neutral	• We agree that spatial planning is necessary and should be statutorily mandated. • There is a risk that RPSs and spatial plans could overlap, so it is appropriate in principle for these to be consolidated into a strategic, spatial instrument at the regional level. • Spatial plans need to be informed by the protective purpose and principles of the NEA, with a suitably strong legal hierarchy between the two. Regulatory controls in regional plans, for example with respect to indigenous biodiversity and freshwater quality, are to be influenced by spatial plans, so spatial plans cannot just be driven by the Planning Act's enabling policies. The EAG refers to 'suitable cross references' to the NEA, but this needs to be a clear hierarchical relationship. • We understand that spatial plans are to be primarily comprised of maps. It is unclear whether the objectives and policies currently contained in RPSs will be contained in spatial plans or instead only in regional plans (environment chapters).

			This is potentially significant because such provisions could look different depending whether they are guided by the goals of the NEA (protective) or Planning Act (enabling). • Questions about which statutory framework drives spatial planning (Planning Act or NEA) reinforces our concerns about splitting the system into two Acts. It would make more sense for a single plan to be the product of a single statutory framework rather than having to reconcile fundamentally different but overlapping purposes/goals. • Spatial plans should cover the coastal marine area. • It is unclear how spatial plans will be prepared and implemented, including the use of IHPs, requirement for strategic environmental assessment, and merits appeal rights to the Environment Court, as well as implementation/coordination plans. We agree with the EAG that this is necessary given the potential regulatory influence of a spatial plan. • It is important that spatial plans are informed by robust data and mapping of environmental constraints. This will require mapping of SNAs across the country. However, we have concerns about the EAG's recommendation that spatial planning commence as soon as possible even if information is 'imperfect', since such imperfections (significant gaps that will take time to fill) are likely to relate to environmental constraints like SNAs.
	23 agree that spatial planning will also promote integration of regulatory planning under the Planning Act and NEA with infrastructure planning and investment.	Potentially beneficial	• One of the key benefits of spatial planning will be to provide greater predictability for infrastructure planning, so (as in Ireland) there needs to be a close (although not necessarily binding) legal relationship between spatial plans and funding frameworks under the LGA and LTMA (and central government funding processes). • Spatial planning also needs to be aligned with planning and funding of environmental improvement efforts.
	24 agree that the Planning Act will include mandatory and optional matters for spatial plans to address with a strong focus on enabling urban development and infrastructure within environmental constraints.	Potentially beneficial	• Infrastructure planning and funding needs to be made clearly subordinate to aspects of a spatial plan outlining environmental constraints. We agree with the EAG that these constraints need to include the 'implications' of environmental limits set under the NEA. • This means that a comprehensive effort to identify such constraints needs to happen before strategic infrastructure decisions are made, and appropriate investment is needed. • Mandatory content of spatial plans should include environmental restoration (e.g., identification of biodiversity corridors).
Spatial plans will enable development and focus on mapping major constraints, identifying existing and future infrastructure (including future infrastructure corridors), future urban areas, and growth and development opportunities.	21 agree that the new system will include long-term, strategic spatial plans that will simplify and streamline the system, enable development within environmental constraints and have sufficient weight and reach to better align land use and infrastructure planning and investment.	Potentially beneficial	• Spatial plans will be vital in providing greater certainty for development (e.g., to ensure renewables (solar and wind) are not sited in sensitive areas, but are facilitated elsewhere), but they will likely not be detailed enough to assess project-level environmental effects. • The 'enabling' of such infrastructure and other broad categories of activity (e.g., large housing projects) in spatial plans should therefore not mean they are granted permitted activity status or that effects assessment is watered down.

			• Development need not be straightjacketed by spatial plans, but effective alignment of land use and infrastructure means that unanticipated or out of sequence development should not generally be allowed (even if onsite infrastructure is funded). • Spatial plans are also an opportunity to improve the natural environment (e.g., by planning for connections/corridors between biodiversity areas, as in Singapore).
Each Act will require a single regulatory plan per region. The regional council will prepare a natural environment plan under the NEA. District councils will each prepare a chapter of a combined district plan.	25 agree that each Act will require one combined plan per region – plan chapters would be developed by each local authority, combined for each region, then presented as a national e-plan.	Potentially beneficial	• The concept of having fewer plans is a good one, and it makes sense to manage many things spatially at the regional level. • It also makes sense to integrate ‘environmental’ and ‘planning’ functions in a single ‘document’, using an aligned plan preparation process (ie all councils within a region preparing/reviewing at the same time). • However, there will be significant complexities in ensuring that different chapters (regional and district, as well as different regions and districts) align with each other. Although agreements to work together could be established, dispute resolution processes will be required (as identified by the EAG, and as were provided for under the NBEA’s regional planning committee model). There is a risk of ministerial override if this disputes process requires ministerial intervention to finalise a plan. • A simpler governance model would be provided through a single layer of regional level governance (e.g., unitisation), with local input. • Complexity is further exacerbated by having two separate statutes potentially influencing multiple chapters of a plan. For example, it is unclear whether the Planning Act chapters are only a ‘district’ tool or one that regions can also be involved in (given regions are anticipated to have various land use functions, including SNAs). • It is not clear if the proposed transition pathway involves all regulatory plans being prepared at once across the country. There are risks in this approach, including capacity constraints within government (e.g., to review plans for compliance with national direction), IHPs, the Environment Court/new Planning Tribunal, and participants operating across multiple regions. A staggered approach (region-by-region) would allow lessons to be learnt from earlier experiences.
	26 agree that each regional council would deliver plan chapters under the NEA and there would be no duplication across chapters.	Uncertain	• The idea of non-duplication is a good one, but it relies on there being seamless integration (and no gaps) between the various chapters. This will be difficult with separate statutes for land use/environment and multiple layers of governance overseeing preparation of a single plan. At present, district and regional councils have overlapping functions with respect to natural hazards, climate change and biodiversity. • There will also need to be a degree of hierarchy between the ‘environment’ chapter (if it does not deal directly with land use) and ‘planning’ chapters. This is because many of the policies in the environment chapter will rely on implementation in the district chapters (e.g., when it comes to controls on the intensity of agricultural land use, rules around afforestation and harvesting). Currently, this hierarchy is achieved by regional councils setting objectives and policies in RPSs, which flow through to district plans. It is not clear whether such provisions would be included in spatial plans.
	27 agree that each territorial authority would deliver a plan chapter managing land use for their area under the Planning Act.	Uncertain	

			Presumably provisions applying to the coastal marine area would only be included in the NEA plan chapter delivered by the regional council.
The Planning Act will require the Minister for the Environment to create nationally standardised zones (NSZs) that councils select and apply in the combined district plan, with a 'stickier' exceptions pathway if bespoke requirements are needed to meet specific community needs or preferences. NSZs will include a zone with substantial flexibility in land use on Māori land.	13 agree that national standards and standardised zones will channel most of the administrative activity in the current system into "default" solutions set once at the national level, with "safety valves" available to allow genuinely novel issues to be given adequate consideration on a case-by-case basis.	Potentially beneficial	As mentioned above, default standardised zones will be useful, but the 'sticky' process should not be <i>too</i> sticky. Much will come down to interpretation of what 'genuinely' novel issues mean. Many issues dealt with under resource management legislation are highly dependent on local context (e.g., the composition of soils, presence of threatened species, flooding risk etc).
The NEA will require environmental limits to protect the life-supporting capacity of the natural environment. It will also require environmental controls to protect significant natural values, such as outstanding natural features and landscapes (ONFLs) and significant natural areas (SNAs) – applying similarly to NSZ provisions – with nationally set default pathways to select from and a 'stickier' process if bespoke solutions are required to meet local variations.	16 agree that the responsible Minister would be required by the NEA to prescribe limits nationally or set default methods for limits to be developed at the regional level, or both.	Potentially beneficial	- The NEA needs to set a robust limit setting framework at both national and regional level, including clear legislative criteria and appropriate institutional checks and balances. - While there needs to be the ability to apply limits to locally specific circumstances, some things (e.g., freshwater quality) require national level bottom lines. - It may be difficult to make a distinction between limits for human health and natural environment, given the dependence of humans on the natural environment for their wellbeing. - We have concerns that RMA protections for things like the natural character of the coastal environment, and landscape/visual amenity, will not fall within the scope of either the Planning Act or NEA (see EAG report at para 128). This will leave an enormous gap. With respect to visual amenity, this will likely mean the development of poorly designed large scale housing estates and poorly integrated public and private spaces, not just neighbours being prevented from complaining about the architectural style of someone's house extension. - With respect to SNAs and ONFLs (described as 'overlays'), we have concerns that despite being within the scope of the NEA, meaningful protections may be undermined in practice if there is a regulatory takings regime that requires compensation for anything departing from bare minimum standards set nationally.
	17 agree that limits to protect human health would be set nationally, and limits to protect the natural environment would be set by regional councils following a set methodology.	Potentially beneficial	
	18 agree that the NEA would include the following framework for setting limits:	Potentially beneficial	It is crucial that a framework for limits specifies a comprehensive range of topics for which controls are required. For example, there need to be firm limits for indigenous biodiversity. The NBEA provided a broadly suitable list.
	18.1 mandatory domains for which limits must be set - subject to further advice, these could include air, water (freshwater and coastal), soil, and ecosystems.	Potentially beneficial	
	18.2 criteria for setting management units.	Potentially beneficial	It will be important for management units to be set at a scale that meaningfully protects the kinds of outcomes limits are supposed to protect (one should not be able to degrade one river while making another pristine). There needs to be careful constraints on the use of offsetting. For example, in Singapore, new developments have to provide for greenery largely onsite (using green walls/roofs).

	18.3 a process for setting limits nationally to protect human health.	Potentially beneficial	It will be important for this to be based on a clear statutory direction about the outcome to be achieved, including consideration of environmental justice (to prevent effects being felt disproportionately by the poor and vulnerable).
	18.4 a process and methodology for regional councils to follow to set limits to protect the natural environment.		
	37 agree that the following EAG recommendations will not be included in the bills for introduction and will be progressed in parallel but on a longer timeline: 37.2 consideration of institutional arrangements for limit-setting.	High concern	- This is an essential component of the limit-setting framework. While deeper institutional change might be put on a longer track (e.g., creation of new institutions, reconfiguring the functions and structure of the EPA and local government), there is still the need to consider ‘who does what’ right from the outset. - A key part of this needs to be strong input from independent and scientific expert bodies, and checks and balances to ensure limits are set in legally defensible places. For example, the NBEA provided for a limits and targets review panel. - We agree with the EAG’s recommendation that national level limits should be set based on the technical recommendations of a retooled EPA, and that monitoring requirements for limits are set by the EPA and implemented by councils.
To support a faster transition, the regulatory plans made under each Act will initially be notified and considered by an independent hearings panel (IHP) together in each region, but determined by each individual council.	Cabinet previously agreed that reform proposals will be developed in a way that builds on the Phase 2 work programme, minimises uncertainty and economic disruption, and enables a rapid transition to the new system [CAB-24-MIN-0315 refers]. Delegated decisions will further consider the plan-making process.	Depends on detail	- The IHP (AUP/Freshwater plan making) model, as largely recommended by the EAG, is generally an appropriate one, for both spatial plan and regulatory plan preparation. - Any delegated decisions about this planning process will need to recognise the important role of the Environment Court in overseeing council decision-making, as well as a role for central government to review proposed plans prior to notification (as proposed by the EAG). - We have some concern about the EAG’s recommendation to restrict the topics on which plan submissions can be made (e.g., the content of overlays ‘selected’ by councils from national standards). To some extent this is ameliorated by the recommendation that submissions can be made on the <i>lack</i> of bespoke provisions that depart from such national standards.
The form and structure of spatial and regulatory plans will be highly standardised, enabling them to be collated and accessed as one national e-plan for New Zealand.	28 note that the one plan per region approach would be achieved through a national e-planning portal, and investment would be required to establish and maintain this portal	Potentially beneficial	A national e-plan would be a positive step, as long as it provided for suitable variation on local needs/circumstances.
A common platform for presenting information spatially – combined with a focus on collecting better environmental reporting data in a form that can be aggregated nationally – will enable significantly better monitoring of system performance and, from there, adaptive management.	56 note that improving the data, technology, and tools that underpin and support the resource management system are critical to better decision-making, the efficient allocation of resources, monitoring and improving system performance and efficiency, unlocking economic growth, and delivering upon the Government’s strategic objectives.	Potentially beneficial	We agree with this sentiment, and it is vital that any ‘economic case’ for improving data encompasses the need to monitor environmental outcomes (especially limits, but also shifting patterns of land use) and not just where information is economically valuable for development or growth. This has been comprehensively set out in a series of reports by the Parliamentary Commissioner for the Environment.

	57 agree that the Minister Responsible for RMA Reform and Parliamentary Under-Secretary for RMA Reform will investigate the economic case for improving data and technology to support a more efficient and effective resource management system, including potential cost recovery mechanisms.	Potentially beneficial	
Consenting activity classes under both Acts will be rationalised and simplified by:	9 agree that the new legislation will raise the threshold for the level of adverse effects on people and the environment that can be considered in setting rules and determining who may be affected by a resource consent, with detailed decisions about reverse sensitivity, materiality threshold for effects management and how it applies through the system to be made under delegation.	High concern	• There are three distinct issues here. • Most concerning is the introduction of a different threshold for ‘material’ effects (those within the jurisdiction of the legislation). The EAG recommended that this be raised slightly from the ‘de minimis’ threshold created by case law under the RMA, to one of ‘less than minor’ (for plans and consents). • We are concerned that Cabinet has left the door open to a much higher threshold, potentially based on ‘significant’ effects. Not only does this undermine the idea of proportionality (all effects warrant proportionate responses), it also risks making worse issues with cumulative effects that have dogged the RMA. Rather than excluding effects from the legislation based on their significance, specific carveouts from scope should focus on types of effect that are not genuine ‘resource management’ issues – such as purely subjective effects (dealing with problematic aspects of urban planning) or effects on trade competition. • Also, the issues of when the public should be involved in a decision (e.g., through submissions) is a distinct question from when legislation should be able to <i>manage</i> effects. Some effects may be sufficiently insignificant to warrant non-notified status for consenting, but that does not necessarily mean planners or consent authorities should artificially exclude them from consideration when making rules or imposing conditions. We consider that these issues were conflated by the EAG (see paras 89-92). • Our second concern is about the greater use of permitted activities. Any general statutory direction that makes obtaining a consent easier across the board would not be a good idea. • Although ‘greater’ standardisation would undoubtedly be beneficial to reduce the number of consents in the system, blanket permitted activities have significant risks if not used judiciously. This is why planners, not primary legislation, make decisions about what they include. • Some of these risks are about the ability/capacity to monitor and enforce (although the EAG recommends some sensible measures to improve this, essentially the permitted activity notice mechanism of the NBEA). But others are about the need to ensure that controls are tailored to the environment in which an activity occurs (e.g., some receiving environments are more sensitive than others or have unique features). This is why the ability to apply stringency (including being able to impose consenting requirements) for activities like forestry is important. • Permitted activities also provide no mechanism to deal with cumulative effects, since there is a right to undertake activities that could have a small individual impact but collectively create big problems.
i. Making greater use of permitted activities ii. Removing controlled activities. iii. Having a greater focus on the use of restricted discretionary activities. iv. Removing the non-complying activity category. v. Retaining prohibited activities, but with a narrower scope and direction on how they can be used.	14 agree that the new legislation has fewer consent activity classes than the RMA, including greater use of permitted activities.	High concern	

			- Furthermore, plans under the RMA (notably district plans) already provide for many permitted standards, and it is only when those standards are infringed that consent is required. In other words, activity status operates as a sliding scale based on scale or effect, not a hard and fast ‘this type of activity is permitted and this other type of activity needs consent’. The specific standards involved may well be tweaked (making more things permitted, like granny flats under a certain floor area), but it would be unwise to deem entire types of activity as being permitted (e.g., intensive dairying) irrespective of their effects. - Legislation should continue to enable the use of permitted activity standards where appropriate. Central government already has the ability to do this through the development of national standards where effects of common activities are known and do not vary meaningfully from place to place (eg effects of transmission towers on human health). To prevent relitigating common themes or technical standards on a case by case basis, while still allowing for controls tailored at the context of a project, national standards should instead focus on the creation of common (or default) consent conditions rather than making almost everything permitted. - Note also the tension between the NEA having the ‘presumption that permission is needed’ and the intention of providing for extensive permitted activities. - The third issue is the removal of controlled and non-complying activity status. We do not have a strong view on this. Controlled and non-complying status add a degree of complexity that could be simplified (other jurisdictions we have reviewed tend not to have equivalents). - However, they also provide an additional degree of predictability to decisions. Controlled activities provide certainty for developers that consent will be granted, but allow conditions to be tailored. This makes them more appropriate for some activities (e.g., places where subdivision is anticipated or even encouraged, but where suitable conditions are important) than permitted or discretionary activities. - If policies in plans are clearly drafted, non-complying activities signal that an activity may be inappropriate but still allows a consenting pathway if an applicant can innovate a solution (e.g., mitigation measures within an airport’s noise contour). The alternative is that such things are simply prohibited (stifling innovation) or made discretionary (giving applicants a false expectation that consent may be granted when that is not realistic). - If the ‘stickier’ pathway of non-complying status is removed, then there will need to be bolder use of prohibited status and much clearer policies that will give predictability to discretionary and restricted discretionary decisions. - We are therefore uneasy with the conclusion of the EAG that prohibited activities should have a narrower scope and be used ‘sparingly’, which is effectively saying that more activities should be put into the melting pot of discretion. It is unclear exactly what ‘scope’ for prohibited activities is anticipated, but at the very least these need to be linked clearly to environmental limits (an activity infringing a limit is, by default, a prohibited activity).
Reverse sensitivity concerns will be addressed in the Planning Act by specifying that:	9 agree that the new legislation will raise the threshold for the level of adverse effects on people and the environment that can be	High concern	A future system needs to take a sensible approach to reverse sensitivity issues, which often involves a clash of people’s property rights (e.g., to develop land into residential sites and to protect airport or farming operations). While there is a case

i. Those that ‘come to the nuisance’ should not be able to complain about it. ii. Reasonable expansion of existing activity will be permitted where the site is ‘zoned or owned’	considered in setting rules and determining who may be affected by a resource consent, with detailed decisions about reverse sensitivity, materiality threshold for effects management and how it applies through the system to be made under delegation.		that those coming to a nuisance with full awareness should have no-complaints covenants imposed, the issue also highlights the importance of good planning practice (including the ability to constrain people’s property rights) and sticking to a spatial plan once it is in place – to ensure that such issues do not arise in the first place. Allowing ad hoc development driven solely by the market (e.g., near an airport) should not be an expectation in a new system. • There are significant questions about what ‘reasonable’ expansion of an existing activity means. Again, to prevent reverse sensitivity issues, the role of planning in the system needs to be strongly recognised (to provide space at the outset for expansion of strategic infrastructure where appropriate), rather than allowing sensitive activities to come to a nuisance and then having to deal with conflicts between them.
The NEA will require councils to charge for using natural resources to recover costs of operating the system and, in the case of overallocated resources, to enable them to be managed back to within environmental limits over time. Where a resource approaches overallocation, or an environmental limit will soon be breached, the relevant community must agree a timeframe and approach for making improvements, and must settle on an alternative allocation method to ‘first-in-first-served’.	19 agree that the NEA require use to be capped to ensure a limit is not breached.	Potentially beneficial	• We agree with this sentiment. The devil will be in the detail – where and how the cap is set, and what such ‘caps’ apply to (e.g., water, soil, air, biodiversity – including on private land).
	20 agree the NEA include procedures for some existing over allocated resources to achieve limits over time	Potentially beneficial	• We agree with this sentiment. Again, much will depend on the adequacy of timeframes, what is meant by ‘overallocated’ (the appropriate threshold in ecological terms) and what is meant by ‘some’ existing overallocated resources (is that intended to exclude some things?). We have some concern about relying on communities ‘agreeing’ about timeframe and approach to meeting limits where they have been infringed. The present system of institutions has not been up to the task of doing this.
	40 agree to a staged approach where the new allocation system is enabled in primary legislation with the following features only being ‘switched on’ through secondary legislation: 40.1 the ability of councils to use new allocation methods that are not enabled under the RMA. 40.2 the ability to compel councils to plan for and implement new methods by resource and/or by region.	Uncertain	• This approach seems appropriate in principle. There needs to be a robust system of allocative methods and guidance before users should be expected to use them. The lack of central government guidance has been one factor in the inconsistent use of novel allocative mechanisms.
	41 agree to carry over existing RMA allocation methods in the NEA and enable the following new methods: market-based approaches (eg, trading, auctions, or tenders) and administrative approaches requiring comparison of the merits of applications.	Potentially beneficial	• We agree that the RMA’s approach to allocation needs to be more robust and consistent, to prevent resources going to inefficient, unfair and unsustainable uses. The EAG has suggested that a suite of alternative approaches be provided for, which is sensible. • Trading (notably for freshwater) needs to be designed extremely carefully and in place-based contexts, to prevent inequitable results (e.g., water barons and speculation) or unsustainable outcomes (e.g., allocation to uses that generate environmental impacts that will infringe limits). It will not work in all catchments.

			Allocation mechanisms need to embrace the environmental benefits that market competition can bring, including the use of attribute weighted tendering that has a focus on uses that will improve environmental outcomes.
	42 agree to carry over existing RMA charging provisions in the NEA, including for cost recovery, and enable charges to be imposed on resource users to enable allocation methods to be operationalised, address overallocation, and provide for efficient use.	Potentially beneficial	- It will be important for users to pay in the new system, rather than the burden of allocative frameworks being placed on taxpayers or ratepayers. - Consideration should be given to charging for the use of resources (resource rentals) for some uses/users, not just cost-recovery. This should be channelled back into protection of the resource, reducing pressure on funding in local government or the EPA. - There is a need to operationalise coastal occupation charging in the new system. This should be made mandatory.
	43 note that the interests of existing resource consent holders will be considered through delegated decisions to enable transition to new allocation methods in a reasonable timeframe where resources are already scarce (eg, 10 years).	Potentially beneficial	We agree that there needs to be a careful transition process where rights have been allocated already. This should not, however, proceed on a blanket assumption that existing rights are to be grandfathered.
A new Planning Tribunal will be established to offer quick, low-cost conciliation and administrative review of council functions (eg, notification, requests for further information), and determination of the meaning of consent conditions.	36 agree in principle, the institutional design for the new planning tribunal be established by the time of the commencement of the legislation, subject to further advice from Ministry of Justice and Ministry for the Environment on the role of the tribunal, and the tribunal's role in transitioning to a new planning system	Uncertain	- We do not see why there is a need for a new Planning Tribunal separate from the Environment Court, although some proposed functions for the Tribunal (which could be undertaken by the existing Environment Court without the additional cost of creating and operating a new and additional institution) will themselves be useful. - This includes rights of appeal with respect to notification decisions (although ideally plans should make notification status clearer to prevent disputes about notification at the consenting stage, as was provided for in the NBEA). Such rights should not be limited to applicants, and should extend to non-notification consent decisions.
A new national compliance and enforcement regulator with a regional presence will be established to build a centre of excellence that will strengthen compliance performance and provide confidence that the system can shift its focus away from ex ante consenting.	37 agree that the following EAG recommendations will not be included in the bills for introduction and will be progressed in parallel but on a longer timeline: 37.1 establishment of a national compliance regulator.	Neutral	- Compliance monitoring and enforcement (CME) requires immediate attention, to ensure that the more 'permissive' regime envisaged is supported by a strong approach to compliance. - While institutional redesign could come after, practically, we do not see a need for the creation of an entirely new entity to perform CME functions. The system would be more workable (and transition easier) with the creation of regional CME hubs (utilising the capacity that resides in local government and linking CME to consenting and plan-making personnel, while creating arm's length decision-making, economies of scale, and stronger input from the EPA). - CME will need to expand its focus on monitoring and enforcement of permitted activities, and will require a more structured framework to do so (e.g., cost-recovery), as explored by the EAG and others.
The extent of the CMA managed under the replacement legislation should be reduced to the area of interest to regional communities, with the Environmental Protection Authority	39 agree to retain the existing geographical extent of the resource management system, including the coastal marine area.	Neutral	We consider that there are genuine questions to explore around the extent of regional council jurisdiction of the coastal marine area, but this would require in depth analysis of the role of the EPA, funding, functions and structure of local government, and the place of other entities like Maritime New Zealand.

(EPA) responsible for planning and consenting beyond that.			
The new Acts will each include a section on how the Treaty of Waitangi should be reflected in the exercise of their respective functions.	29 note the EAG has recommended that the new legislation carry forward an equivalent of section 8 of the RMA. 30 note further work is needed to ensure the approach taken to an overarching Treaty of Waitangi clause appropriately considers the objectives of resource management reform and the wider review of Treaty clauses in legislation. 31 direct the Minister Responsible for RMA Reform and Parliamentary Under-Secretary for RMA Reform to report back to Cabinet Economic Development Committee before the introduction of legislation to finalise an approach to a Treaty of Waitangi clause, noting the report-back will: 31.1 seek agreement to a clause that recognises the Treaty of Waitangi and the uniqueness of settlements entered into by the Crown with Iwi/Māori; and 31.2 rule out the use of a general Treaty principles clause, as recommended by the EAG report, and as is currently expressed in section 8 of the RMA. 32 note we will work with officials to ensure the system is explicit about how Māori groups interact with the planning system, while also ensuring that any Treaty settlements are upheld. 33 note Cabinet has agreed that upholding Treaty settlements and related agreements is a principle of the reform of the RMA. 34 note the scope and objectives of reform will require changes to be made to settlement redress, which require the agreement of relevant PSGEs or groups.	High concern	We support the honouring of the Treaty of Waitangi in the new system, and would be concerned about any erosion of the requirement to do so.

	35 agree further decisions on the appropriate process and legislative drafting required to enable a process for Treaty settlements and related agreements to be upheld will be made under delegation. 44 note that possible approaches to preserve and uphold Crown commitments on rights and interests in freshwater and geothermal resources, including in a new allocation system, will be explored through engagement with Māori (consistent with CAB-24-MIN-0413.01) and options will be brought back to Cabinet for decisions. 55 note officials will work with key iwi/Māori groups such as the National Iwi Chairs Forum's Pou Taiao advisory group and Te Tai Kaha, as well as engaging with the relevant PSGEs and other entities to ensure Treaty settlements and other legislative arrangements are upheld appropriately.		
--	--	--	--

OTHER ELEMENTS OF EAG REPORT NOT DIRECTLY ADDRESSED BY CABINET DECISION			
Consideration of broader institutional arrangements and system settings (including issues about political economy of councils, resourcing and system monitoring, and accountability)		Potentially positive	There needs to be close consideration of the structure and functions of local government and the EPA, as well as more fundamental system architecture around checks and balances. The EAG mentioned, for example, the promising models in the United Kingdom (the Office of Environmental Protection), Ireland (the Office of the Planning Regulator) and Wales (the Future Generations Commissioner).
Net biodiversity gain through offsetting and compensation		High concern	Although being presented as a tool for environmental improvement, the devil of offsetting and compensation frameworks will be in the detail. For example, although aspects have been positive, there have been risks in the United Kingdom's new framework for net gain. The EAG recommends offsetting <i>where appropriate</i>, but there is a significant conversation about what that means. At minimum, the offsetting and compensation safeguards in the NPS for Indigenous Biodiversity should be retained in a future system.
Shifting coastal management from Minister of Conservation to Minister for the Environment		Uncertain	We are unclear as to the rationale. It is also unclear what the Ministerial role would be under the new system, for example, would the Minister approve the part of the plan covering the coastal marine area?
Moving some of the detailed process matters covered in the RMA to secondary legislation.		High concern	The appropriateness of this measure will depend on exactly what detail is moved to regulations. We have significant concern that secondary legislation can be more easily changed with fewer checks and balances. Procedural machinery (e.g., the plan making and consenting process, or basic AEE requirements) might be

			extensive, but its stability and legal visibility are vital. A better option would be to create a more coherently structured set of schedules to new legislation.
Establish a freshwater working group to recommend an approach to allocation.		Potentially beneficial	In practice, this will require resolution before widespread use of alternative allocative mechanisms under the NEA.
Imposing a charge in overallocated catchments to reinvest in cost-effective interventions (eg land purchase and retirement).		Potentially beneficial	
Creation of a national spatial plan		Potentially beneficial	It is important that this is, as the EAG states, an amalgamation of regional spatial plans and relevant national spatially expressed policy like the Infrastructure Strategy, rather than a legal instrument that influences regulatory plans under the Planning Act and NEA. This is because relevant national level policies would not have gone through a robust process under the legislation, and should not be allowed to change decisions that have.
An expedited 'plan change' process for areas identified as indicative urban in a regulatory plan		Uncertain	Although the EAG recommends the use of an 'appropriate process' triggered by (for example) the availability of infrastructure, it is not clear what that process involves (e.g., the ability for people to submit). This still needs to be robust, since large scale residential development (even if that general use is anticipated in a plan) will have potential environmental effects depending on its detailed design.
Removal of direct referral and nationally significant proposals (call in)		Uncertain	
Softening consenting requirements for remedial work following a natural disaster (relying on post-completion certification)		Uncertain	
Notification of consents under the Planning Act limited to those in the relevant district, intended to include only incorporated societies with a history of operation in the district.		High concern	This has the risk of excluding national level watchdog NGOs. Such bodies bring considerable value to the decision-making process at the local level (as evidenced by numerous court decisions). This is not necessarily to prevent development proposals; more frequently it is to ensure that activities proceed in a way that ensures appropriate protections for the natural environment and to clarify important matters of legal interpretation.
The permitted baseline is mandatory for all consenting decisions		High concern	It is unclear how this applies if the system is moving away from an 'effects based' approach. In addition, the permitted baseline has been detrimental to good outcomes due to provision made for one activity for practical reasons, such as erection of farm buildings, used to justify other activities such as urban development.
For consents, requiring council reports and decisions to only address any areas of disagreement and enable reliance on trusted advisors.		Uncertain	Unclear what is meant by this.

Enable setting of page limits either by regulation or by each hearing panel.		High concern	Depends on the nature of an activity.
Mandatory use of independent commissioners		Potentially positive	
Ability to complain to an industry body about poorly performing commissioners		Uncertain	Dependent on what an ‘industry body’ means.
Various improvements to CME, largely adopted from the NBEA model		Potentially positive	
Planning Tribunal determining objections to council decisions		Potentially positive	An independent body making such determinations would be more appropriate than councils themselves reconsidering their own decisions. But it is unclear why the Environment Court couldn’t do this and avoid the cost of additional institution.
Planning Tribunal determining notification decisions		Potentially positive	This would be a more suitable route than relying on judicial review. However, the Environment Court would be well placed to do this.
Planning Tribunal striking out consent conditions where ultra vires		Uncertain	This is a judicial function and would be more suitable to appellate jurisdiction. We see risks that it is used to strike out conditions addressing material environmental effects in a way that reduces opportunity for public interest advocacy.
Independent system review every ten years, regular assessments of implementation and alignment of system review with environmental reporting		Potentially positive	